

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: William Rasenberger	Team: Squad #07	CCRB Case #: 202004123	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Sunday, 05/31/2020 12:30 AM	Location of Incident: West 14th Street between 5th and 6th Avenues	18 Mo. SOL 5/4/2022	Precinct: 13
Date/Time CV Reported Tue, 06/09/2020 9:38 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 06/09/2020 9:38 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Robert Rufrano	16389	961209	013 PCT
2. LT Grillo James		922454	013 PCT
3. POM William Blum	12545	957390	013 PCT
4. DI Elias Nikas	00000	902105	PBMS
5. An officer			
6. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. LT Edward Herdina	00000	944647	013 PCT
2. SGT Edward Faini	00103	928266	013 PCT
3. POM John McCormick	05616	956905	013 DET
4. POM Nezir Ljubanovic	26347	965274	013 PCT

Officer(s)	Allegation	Investigator Recommendation
A . LT Grillo James	Force: Lt. James Grillo used physical force against § 87(2)(b)	A . Miscellaneous - Subject Retired
B . LT Grillo James	Force: Lt. James Grillo used physical force against § 87(2)(b)	B . Miscellaneous - Subject Retired
C . POM William Blum	Force: Police Officer William Blum used physical force against § 87(2)(b)	C . Exonerated
D . Officers	Force: Officers used physical force against § 87(2)(b)	D . Exonerated
E . An officer	Force: An officer restricted § 87(2)(b) breathing.	E . Officer(s) Unidentified
F . DI Elias Nikas	Abuse: Deputy Inspector Elias Nikas arrested § 87(2)(b)	F . Substantiated
G . POM Robert Rufrano	Abuse: Police Officer Robert Rufrano seized § 87(2)(b) property.	G . Substantiated

Case Summary

On June 9th, 2020, the CCRB received the following complaint from § 87(2)(b) via the CCRB website [BR 1].

On the night of May 30th, 2020, § 87(2)(b) was riding his bicycle in the vicinity of Union Square park, and taking videos and photographs of a George Floyd/Black Lives Matter demonstration. At about 12:01 a.m. on May 31st, 2020 § 87(2)(b) was riding his bicycle on the south side of 14th Street between 5th and 6th Avenues. Officers ordered § 87(2)(b) to cross to the north side of the street. As he was crossing the roadway, Lt. James Grillo, formerly assigned to the 13th Precinct and now retired, allegedly shoved § 87(2)(b) off of his bicycle [Allegation A: Force – Physical Force, Miscellaneous – Subject Retired]. § 87(2)(b) fell to the roadway, but got back up and continued to the north side of the street. He was speaking to another civilian in front of 25 West 14th Street, when Lt. Grillo, Police Officer William Blum of the 13th Precinct, and two other plainclothes officers ran over to § 87(2)(b) and forcibly took him down to the sidewalk [Allegation B: Force – Physical Force, Miscellaneous – Subject Retired; Allegation C: Force – Physical Force, Exonerated; Allegation D: Force – Physical Force, Exonerated]. While handcuffing § 87(2)(b) on the sidewalk, an officer allegedly pressed his knee into § 87(2)(b) back, thereby restricting § 87(2)(b) breathing [Allegation E: Force – Restricted Breathing, officer unidentified]. § 87(2)(b) was ultimately transported to One Police Plaza and issued a summons in lieu of arrest for Disorderly Conduct [Allegation F: Abuse of Authority – Retaliatory Arrest, Substantiated]. § 87(2)(b) bicycle was not transported to One Police Plaza or otherwise vouchered, and § 87(2)(b) has not been able to retrieve it [Allegation G: Abuse of Authority – Seizure of Property, Substantiated].

The CCRB has received eight body-worn camera videos for this case [BR 2, 3, 4, 5, 6, 7, and 8].

Findings and Recommendations

Allegation A: Lieutenant James Grillo used physical force against § 87(2)(b)

Allegation B: Lieutenant James Grillo used physical force against § 87(2)(b)

Allegation C: Police Officer William Blum used physical force against § 87(2)(b)

Allegation D: Officers used physical force against § 87(2)(b)

Allegation E: An officer restricted § 87(2)(b) breathing

Allegation F: Deputy Inspector Elias Nikas made a retaliatory arrest of § 87(2)(b)

Allegation G: Police Officer Robert Rufrano seized § 87(2)(b) property

§ 87(2)(b) stated in his CCRB interview [BR 9] that on the night of May 30th, 2020, he was riding his bicycle in the vicinity of Union Square, photographing and recording the George Floyd/Black Lives Matter demonstrations underway in the area. § 87(2)(b) was not himself participating in the protests. § 87(2)(b) biked to 14th and 6th Avenue, and then biked east to 5th Avenue, before turning around and biking back toward 6th Avenue. As he did so, he recorded a cellphone video [BR 10], which shows at least 50 police officers advancing west along 14th Street, from 5th Avenue toward 6th Avenue. This is also captured, from the opposite side of 14th street, in a video recorded by the media outlet LoudLabs NYC [BR 11]. Between 27:00 and 27:40, officers are seen advancing to the west as § 87(2)(b) described; § 87(2)(b) is seen in the background, biking east along the southbound sidewalk, between 27:13 and 27:25. Body-worn camera footage recorded by Police Officer Vincent Bieniek of the 13th Precinct and Police Officer Nezir Ljubanovic captures the beginning of officers' advance west along 14th Street [BR 5 and BR 2]. § 87(2)(b) stopped about midway between 5th and 6th Avenues, and took photographs of an arrest occurring across the street, on the north sidewalk [BR 12]. About twenty officers approached § 87(2)(b) as he did so,

and yelled at § 87(2)(b) to move. § 87(2)(b) put his hands up, to signal compliance, and then began crossing to the north side of the street. He made it about half way across the street, and was still attempting to clip his cleats into his bicycle's pedals, when Lt. James Grillo allegedly shoved § 87(2)(b) from his bicycle onto the roadway. § 87(2)(b) sustained various bruises and lacerations, photographs of which he provided to the CCRB [BR 13]. The CCRB is not in possession of any video of this alleged use of force, and no witness officers interviewed for this case have corroborated this part of § 87(2)(b) testimony.

Lt. Edward Herdina and Deputy Inspector Elias Nikas provided different explanations of why officers were advancing en masse west along 14th Street, as seen in the videos cited above. Lt. Herdina stated in his CCRB interview [BR 14] that he and other members of service were going to investigate reports of looting at 14th Street and 6th Avenue. Deputy Inspector Nikas did not recall the protest in the Union Square area on May 30th, 2020. However, he stated during his CCRB interview [BR 15] that during the demonstrations that occurred in late May, the NYPD regularly cleared streets of protesters. On the basis of Lt. Herdina's body-worn camera footage, as well as PO Bieniek's body-worn camera footage – both of which were presented to DI Nikas during his CCRB interview -- DI Nikas explained that officers were clearing out 14th Street between 5th and 6th Avenues, and arresting protesters that had failed to disperse. DI Nikas explained that this tactic was used only after the NYPD had played a pre-recorded announcement over an LRAD public message device warning protesters that they were violating the law and could be subject to arrest. Footage from Police Officer Nezir Ljubanovic's body-worn camera [BR 16] shows that, beginning at or earlier than 11:41 p.m. (01:00 in the footage), officers at the intersection of 14th Street and 5th Avenue played a message over the LRAD system stating "this assembly is unlawful; if you do not disperse, you will be subject to arrest." At this time, at least one hundred protesters are seen in the roadway at the intersection, clearly obstructing vehicular traffic. Some protesters are seen throwing objects at police officers. Lt. Herdina explained during his interview that the assembly was unlawful because protesters were blocking vehicular traffic at the intersection of 14th Street and 5th Avenue. His understanding was that protesters on the sidewalks were generally not subject to arrest. The footage shows that the NYPD stopped playing the message at 11:48 p.m.

Lt. Herdina's body-worn camera footage [BR 4] begins at 12:04 a.m. Between 00:00 and 00:50, at least one hundred officers are seen advancing west along 14th Street, toward 6th Avenue. There are very few civilians seen in the footage, although some civilians are seen on the south sidewalk between 00:14 and 00:27. At 00:33, about five civilians, three of whom are on bicycles, are seen in front of a Levi's store, on the north side of 14th Street. One of these bicyclists is § 87(2)(b).

§ 87(2)(b) stated that at this time, he was speaking to another civilian, who had witnessed Lt. Grillo pushing § 87(2)(b) off his bicycle, and was attempting to obtain his contact information. At 00:41 in Lt. Herdina's body-worn camera footage, DI Nikas is seen, in the right of the frame, walking in the direction of § 87(2)(b) and the other civilians in front of Levi's. DI Nikas points in their direction. At 00:49, DI Nikas is again seen pointing in the direction of § 87(2)(b). Lt. Grillo, wearing a gray t-shirt and a gray baseball cap, looks toward DI Nikas. Then Lt. Grillo and other plainclothes officers are seen running over to § 87(2)(b). Upon being presented with this footage, Lt. Herdina stated that DI Nikas and Lt. Grillo made the decision to arrest § 87(2)(b) although he believed that Lt. Grillo ultimately initiated the arrest. Lt. Herdina had not seen § 87(2)(b) prior to this point, and had not observed § 87(2)(b) committing any crimes or violations. DI Nikas acknowledged seeing himself pointing toward § 87(2)(b) in Lt. Herdina's body-worn camera footage, but did not recall directing any officers to arrest § 87(2)(b). (As a general matter, DI Nikas stated, he does not direct other officers to make arrests, but instead makes arrests himself when he has probable cause to do so. However, PO Ljubanovic's body-worn camera footage [BR 16] contradicts DI Nikas's statement. In this footage, between 1:55 and 2:05, and again between 02:24 and 02:40, DI Nikas directs PO Ljubanovic to arrest a particular protester. In this footage, DI Nikas is heard stating "here's where we get to pick who we want," and speaks of "taking a [protester's]

head off”)

§ 87(2)(b) stated that when he saw the plainclothes officers running toward him, he believed that they were attempting to apprehend the civilian he was speaking with. He mounted his bicycle and began riding away, so as not to interfere with the officers, but the officers grabbed ahold of him. According to § 87(2)(b) the officers then removed him from his bicycle, and tackled him to the sidewalk. At 00:58, Lt. Grillo, PO Blum, and two other plainclothes officers, both unidentified, are seen taking § 87(2)(b) off his bicycle and bringing him to the sidewalk in a controlled takedown. The officers then place § 87(2)(b) in handcuffs. It is impossible to determine from the footage whether any officers are exerting any pressure on § 87(2)(b) back or neck, or otherwise restricting § 87(2)(b) breathing. § 87(2)(b) was not able to say how many officers, or which officer(s), exerted pressure on his back. Each member of service interviewed for this case denied that he or any other officer restricted § 87(2)(b) breathing in anyway. DI Nikas is seen again in Lt. Herdina’s body-worn camera footage between 01:20 and 01:30. DI Nikas stated, on the basis of this footage, that he was supervising the arrest and ensuring that all involved members of service complied with department protocols, including using a reasonable amount of force. DI Nikas further stated that the arrest of § 87(2)(b) appeared to be proper, as § 87(2)(b) had failed to clear the area despite the unlawful assembly warning the NYPD had been playing.

PO Rufrano ultimately issued § 87(2)(b) a summons for 240.20(6) – unlawful assembly [BR 17], one of the six sections of disorderly conduct. He stated during his CCRB interview [BR 18] that he was directed to do so by Lt. Grillo, who informed him that § 87(2)(b) was under arrest for disorderly conduct. The summons narrative states that “[PO Rufrano] observed § 87(2)(b) in the middle of the street with approximately 50 others yelling and screaming at police officers. § 87(2)(b) was ordered to disperse but refused.” PO Rufrano originally stated during his interview that the first time he observed § 87(2)(b) was when § 87(2)(b) was being taken into custody on the north side of 14th Street. PO Rufrano explained that he walked over from the south side of 14th Street to the scene of the arrest, to check whether his assistance was needed. Upon being presented with the summons narrative, however, PO Rufrano stated that he first observed § 87(2)(b) on his bicycle in the middle of the roadway on 14th Street, between 5th and 6th Avenues. This, according to PO Rufrano, is when he saw § 87(2)(b) yelling in the middle of the street with approximately 50 other protesters. At another point in his interview, PO Rufrano stated that he could not recall whether § 87(2)(b) appeared to be involved in the demonstration, as opposed to being a spectator. PO Blum also equivocated during his CCRB interview [BR 19] as to when he first saw § 87(2)(b). He did not recall whether § 87(2)(b) appeared to be participating in the demonstration, or whether he ever observed § 87(2)(b) yelling in the middle of the road. Like PO Rufrano, PO Blum originally stated that there were hundreds of protesters on 14th Street between 5th and 6th Avenue at the time of § 87(2)(b) arrest. He retracted this statement after being presented with Lt. Herdina’s body-worn camera footage, which shows that there were very few civilians on 14th Street at the time of § 87(2)(b) arrest. Police Officer John McCormick and Sgt. Edward Faini, each assigned to the 13th Precinct anti-crime team at the time, were also interviewed for this case [BR 20 and 21]. Both denied any recollection of § 87(2)(b) or his arrest.

It is undisputed that PO Rufrano did not arrange for § 87(2)(b) bicycle to be vouchered or otherwise safeguarded. He explained that conditions in the area made it unsafe for an officer to safeguard § 87(2)(b) bicycle, and that the bicycle would not fit in the vehicle that transported § 87(2)(b) to One Police Plaza. PO Rufrano determined that the bicycle would need to remain on-scene. Lt. Herdina’s body-worn camera footage, cited above, shows that officers considerably outnumbered protesters near the location of § 87(2)(b) arrest. There is no evidence of any conditions that would have made it impossible or even especially difficult to safeguard and maintain temporary custody of § 87(2)(b) bicycle. § 87(2)(b) never received a receipt, voucher, or any other documentation regarding his bicycle. Since the incident, he has not been able to retrieve or find any record of his bicycle.

The NYPD never presented the summons issued to § 87(2)(b) to the New York Criminal

Court. In an e-mail chain [BR 22] between § 87(2)(b) an attorney representing § 87(2)(b) in a related lawsuit against the city of New York, and § 87(2)(b) Assistant Clerk for the Criminal Court of New York, § 87(2)(b) states that a docket does not exist for § 87(2)(b) criminal case. This is highly unusual, according to § 87(2)(b) as other summonses issued over the course of the protests were resolved through formal judicial channels.

NYPD PG 221.01 states that members of service may use force when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances. NYPD Patrol Guide 221.01 [BR 23].

NY CLS Penal § 240.10 provides that a person is guilty of unlawful assembly when he assembles with four or more other persons for the purpose of engaging or preparing to engage with them in tumultuous and violent conduct likely to cause public alarm, or when, being present at an assembly which either has or develops such purpose, he remains there with intent to advance that purpose. NY CLS Penal § 240.10 [BR 24].

NY CLS Penal § 240.20 (6) provides that a person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof, he congregates with other persons in a public place and refuses to comply with a lawful order of the police to disperse. NY CLS Penal § 240.20 (6) [BR 25].

NYPD PG 208.03 states that the arresting officer must provide an itemized receipt for property temporarily removed from a prisoner which is not to be held in police custody. The arresting officer must also ask the prisoner whether s/he wants any personal property to be vouchered for safekeeping. NYPD Patrol Guide Procedure 208.03 [BR 26].

§ 87(2)(g)

it is recommended that **allegation A be closed as Miscellaneous – Subject Retired.**

When Lt. Grillo, PO Blum, and two other unidentified officers ran toward § 87(2)(b) to arrest him, § 87(2)(b) rode away from the officers on his bicycle. § 87(2)(g)

It is therefore recommended that **allegation B be closed as Miscellaneous – Subject Retired, and that allegations C and D be exonerated.**

§ 87(2)(g)

These officers' faces were almost totally concealed and, as plainclothes officers, they were not wearing lapel tags or shields that could assist in their identification. None of the officers interviewed for this case were able to identify these officers.

§ 87(2)(g)

It is therefore recommended that **allegation E be closed as officer unidentified.**

Footage shows that there were very few civilians on 14th Street between 5th and 6th Avenue around the time of § 87(2)(b) arrest; there were no crowds of protesters yelling in the street. Instead, the video evidence, including the LoudLabs NYC footage and § 87(2)(b) own videos and time-stamped photographs, corroborates § 87(2)(b) testimony that he was biking along the south sidewalk of 14th street, recording events in the area, in the minutes before he was arrested. Lt. Herdina's body-worn camera shows that

immediately before § 87(2)(b) was arrested, he was on the sidewalk, speaking with a single other civilian. § 87(2)(b) was arrested 16 minutes after the NYPD stopped playing a message over the LRAD system advising protesters that the assembly was unlawful, and that they could be arrested if they did not disperse. In any case, this message applied to a clearly unlawful assembly at the intersection of 14th Street and 5th Avenues, and did not prohibit otherwise law-abiding civilians from using public sidewalks, as they are generally allowed to do. § 87(2)(g)

Video evidence shows that Lt. Grillo and other MOS ran toward § 87(2)(b) to take him into custody, only after DI Nikas walked toward § 87(2)(b) and pointed him out. DI Nikas's statement that he did not direct subordinates to make arrests is contradicted by PO Ljubanovic's BWC footage, which shows DI Nikas directing PO Ljubanovic to arrest a protester. § 87(2)(g)

, it is recommended that **allegation F be substantiated**.

In arresting § 87(2)(b) PO Rufrano in effect seized § 87(2)(b) bicycle. NYPD PG 208.03 establishes that arresting officers are responsible for securing or safeguarding the property of prisoners. § 87(2)(g)

It is therefore recommended that **allegation G be substantiated**.

Civilian and Officer CCRB Histories

- This if the first CCRB complaint to which § 87(2)(b) has been a party [BR 27].
- PO Blum has been a member of service for five years, over which time he has been the subject of two CCRB complaints and two allegations, neither of which was substantiated. § 87(2)(g)
- DI Nikas has been a member of service for twenty-eight years, over which time he has been the subject of three CCRB complaints and six allegations, one of which was substantiated. § 87(2)(g)
 - Case 200900106 involved an allegation of frisk, which was substantiated and resulted in command discipline.
- Lt. Grillo was a member of service for an unknown number of years, over which time he was the subject of 15 CCRB complaints and 38 allegations, four of which were substantiated. § 87(2)(g)
 - Case 201206499 involved allegations of stop, vehicle search, discourtesy, and threat of arrest, all of which were substantiated, and resulted in forfeited vacation days.

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.

